JECONIAH CHIDUKU
and
ISAAC CHIDUKU
and
NOREEN CHIDUKU
versus
THOMPSON LEGAL PRACTITIONERS

HIGH COURT OF ZIMBABWE
ZHOU AND CHIKOWERO JJ
HARARE; 23 October 2025

Civil Appeal

Appellants in person
No appearance for the respondent

CHIKOWERO J:

[1] This is an appeal from the judgment of the Magistrates Court sitting at Harare dismissing an application for rescission of default judgment.

[2] We heard oral argument from the appellants on 23 October 2023 whereupon we dismissed the appeal with no order as to costs. We gave oral reasons for our decision.

[3] The appellants have requested that we reduce those reasons into writing as they have filed an appeal against our judgment. The following are the reasons for our decision.

[4] The appellants are siblings. The respondent, a firm of legal practitioners, served summons on the appellants claiming payment of the sum of US$44 222 which it alleged to be the balance of fees for professional services rendered to the appellant in respect of six matters at their instance and request. The respondent also claimed interest and costs of suit.

[5] The appellants entered appearances to defend the action. Through the first appellant, who appeared at the offices of the respondent to receive such process, the appellants were served with a notice to plead. In any event, the appellants did not deny, before the Magistrates Court, that they were served with a notice to plead.

[6] But they did not file a plea. The respondent applied for and was granted default judgment against the appellants.

[7] The Messenger of Court then attached the respondents' property. Only then did the appellants spring into action by filing an application for rescission of the default judgment. They also applied for stay of the execution pending determination of the application for rescission of default judgment.

[8] The first appellant deposed to the main affidavit. The second and third appellants adopted the contents thereof. The appellants swore that they were not in wilful default. They alleged that they had filed their plea. They said it was attached to their founding papers as annexure "F." However, there was no annexure "F" attached to the founding papers in the application for rescission of default judgment.

[9] By way of the grounds of defence to the action the appellants made the following allegations. First, that they did not instruct the respondent to represent them in two of the matters in respect of which the respondent had claimed fees for professional services rendered. Second, that in respect of the rest of the matters the appellants alleged that they had agreed with the respondent that it would recover its fees from the costs of suit awarded to them in those matters. Put differently, the appellants alleged that they had agreed with the respondent that it would not directly charge them fees for professional services rendered to them in the four matters.

[10] In opposing the application for rescission of default judgment, the respondent insisted that the appellants were in wilful default. It pointed out that the appellants were not being truthful in alleging that they had filed their plea. It drew the lower court's attention to the fact that there was no plea filed of record. In addition, although the appellants referred to annexure "F" as copy of the plea, no such annexure was attached to their founding papers.

[11] With regards to the defence to the claim, the respondent's response was this. First, there was no way that it would have rendered legal services to the appellants in the two matters without receiving instructions from the appellants. As regards the other four matters, the respondent denied the existence of the agreement adverted to at para 10 of this judgment. The respondent attached statements of accounts, fee notes and a reconciliation of account breaking

down its legal fees, reflecting some ten part-payments made by the appellants and the balance which then became the subject of the claim in the summons.

[12] The lower court found that the appellants were in wilful default. It was satisfied that with full knowledge of the service of the notice to plead and the consequences of non-compliance therewith, the appellants had deliberately decided not to file a plea. It referred to case law defining wilful default. These include *Bandera* v *Kondowe* HH 564/23 and *Zimbabwe Banking Corporation* v *Masendeke* 1995(2) ZLR 400 (S). Applying the law to the facts of the matter before it, the lower court concluded that the appellants were in wilful default. Their explanation for not filing a plea was demonstrably false. They falsely claimed to have filed a plea. They falsely alleged that they had attached copy thereof as annexure "F" to their founding papers.

[13] Having found that the appellants were in wilful default, the lower court found it unnecessary to determine whether the appellants had established a *bona fide prima facie* defence on the merits of the claim in the main matter.

[14] Aggrieved with the outcome of their application for rescission of default judgment, the appellants filed an appeal to this court.

[15] Their grounds of appeal raise two issues. First, whether the lower court misdirected itself in finding that they were in wilful default. Second, whether it erred in not finding that they had a *bona fide prima facie* defence on the merits.

[16] In urging us to find that the lower court misdirected itself in finding that the appellants were in wilful default, the first appellant said at the hearing of the appeal:

> "When the last papers were served I found them strewn all over outside the gate on a Saturday afternoon. I didn't imagine that that was proper service. I was expecting that I would be properly served without knowing that those papers would be the ones used in court."

The second and third appellants associated themselves with this submission. But it is not honestly made. It is not based on the four corners of the record. It implies that the appellants were not served with the notice to plead, hence their failure to file a plea. That was not their case before the lower court. There, they alleged, as a fact, that they were served with the notice to plead. They went on to allege, as another fact, that they had complied with the notice to plead by filing their plea. They referred to a non-existent annexure "F" as copy of the plea. What does

this mean? It means that at the hearing of the appeal the appellants abandoned the case that they had argued before the lower court in a bid to persuade that court that they were not in wilful default and made a completely new case, outside the record of proceedings in a bid to urge us to find that the lower court erred in finding that they were in wilful default. That is not how to motivate an appeal. The appellants could not argue an appeal on a basis which is foreign to the record. Ultimately, they did not, in oral submissions, attack the factual findings made by the lower court which grounded its conclusion that the appellants were in wilful default. The lower court did not misdirect itself in finding that the appellants were in wilful default.

[17] Order 30 R(1) and (2) of the Magistrates Court (Civil) Rules, 2019 read:

> "(1) Any party against whom a default judgment is given may, not later than one month after he or she has knowledge thereof, apply to the court to rescind or vary such judgment.
> (2) Any application in terms of subrule (1) shall be on affidavit stating shortly –
> (a) the reasons why the applicant did not appear or file his or her plea; and
> (b) the grounds of defence to the action or proceedings in which the the judgment was given or of objection to the judgment." (emphasis is mine).

The word "and" between Order 30 R 1 (2) (a) and (b) means that an applicant must in addition to proving that he or she was not in wilful default also prove that he or she has a *bona fide prima facie* defence to the main claim without which the default judgment will not be rescinded. Since the appellant had failed at the first hurdle, there was no need for the lower court to deal with the second requirement for an application for rescission of the default judgment.

Indeed, the second aspect recorded at para 14 of this judgment does not arise in the circumstances of this appeal.

[18] Despite the respondent's success on appeal no costs will be awarded to it because it did not participate in the appeal.

ORDER

[19] IT IS ORDERED THAT:

1. The appeal is dismissed.
2. There is no order as to costs.

CHIKOWERO J: ……

ZHOU J: ……I agree